

Court No. - 21

Case :- WRIT - C No. - 73618 of 2011

Petitioner :- Dr. Dinesh Chandra

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Nigamendra Shukla

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Sunita Agarwal, J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing for the respondent no. 1 and Sri Pankaj Mishra, Advocate holding brief for Sri Pankaj Kumar Shukla, learned counsel appearing for the respondent nos. 2 to 4.

By this writ petition the petitioner has prayed for quashing the order dated 23.11.2011 passed by the Divisional Engineer-respondent no. 3 by which petitioner's application praying for electric connection has been rejected on the ground that no objection certificate has not been granted by the landlord.

Learned counsel for the petitioner submits that the petitioner was never asked to give any bond or any other security. Under the provisions of U.P. Electricity Supply Code, 2005 in the absence of no objection certificate from the landlord in 4.4, the respondent can supply the energy by taking the indemnity bond.

In view of the aforesaid, we are of the view that the respondent may intimate the petitioner about necessary requirement for supply of the electricity including the requirement of indemnity bond as contemplated under the Electricity Supply Code. The petitioner's application after completing the necessary formality shall be considered afresh for the supply of electricity connection expeditiously preferably within a period of three months from the date of production of certified copy of this order.

With the aforesaid observations, the writ petition is disposed of.

Order Date :- 20.12.2011

Ram Murti